

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Purchased: 9/24/14

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JEFFREY TREFFY,

SUMMONS

Jury Trial Demanded

Plaintiff,

Plaintiff designates Bronx County
as the place of trial.

-against-

THE CITY OF NEW YORK, DET. DENIA ROBERTS,
Shield No. 006669, Individually and in his Official
Capacity, DET. ODALIS PEREZ, Shield No. 007037,
Individually and in his Official Capacity and POLICE
OFFICERS "JOHN DOE" #1-10, Individually and in their
Official Capacity (the name John Doe being fictitious, as the
true names are presently unknown),

The basis of venue is:
CPLR § 504(3)

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
September 24, 2014

COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10279
(212) 374-9115

TO:

ZACHARY W. CARTER
Corporation Counsel of the City of New York
Attorney for Defendant THE CITY OF NEW YORK
100 Church Street
New York, New York 10007
Bronx, NY 10457

DET. DENIA ROBERTS
Shield No. 006669
52nd Precinct Detective Squad
3016 Webster Ave.
Bronx, NY 10467

DET. ODALIS PEREZ
Shield No. 007037
Bronx Narcotics
c/o NYPD Headquarters
1 Police Plaza – 11th Floor
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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JEFFREY TREFFY,

Plaintiff,

-against-

THE CITY OF NEW YORK, DET. DENIA ROBERTS,
Shield No. 006669, Individually and in his Official
Capacity, DET. ODALIS PEREZ, Shield No. 007037,
Individually and in his Official Capacity, and POLICE
OFFICERS “JOHN DOE” #1-10, Individually and in their
Official Capacity (the name John Doe being fictitious, as
the true names are presently unknown),

Defendants.

-----X

COMPLAINT

Jury Trial Demanded

Index No.

BASIS FOR VENUE:

CPLR § 504(3)

Plaintiff JEFFREY TREFFY, by his attorneys, COHEN & FITCH LLP, complaining of
the defendants, respectfully alleges as follows:

FACTS

1. Plaintiff JEFFREY TREFFY is a Hispanic male and has been at all relevant times
a resident of Queens County in the City and State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly
organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police
Department, duly authorized public authorities and/or police departments, authorized to perform
all functions of a police department as per the applicable sections of the New York State
Criminal Procedure Law, acting under the direction and supervision of the aforementioned
municipal corporation, The City of New York.

4. That at all times hereinafter mentioned, the individually named defendants DET. DENIA ROBERTS, Shield No. 006669, DET. ODALIS PEREZ, Shield No. 007037, and POLICE OFFICERS “JOHN DOE” #1-10 were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

The February 21, 2013 Incident

8. On or about February 21, 2013, in the County of Bronx, City, and State of New York, plaintiff JEFFREY TREFFY was in the vicinity of Watson Ave. and Ward Ave., Bronx, NY.

9. At the aforesaid time and place, NYPD officers approached plaintiff, searched him, and then immediately placed him under arrest with his arms tightly behind his back.

10. At no time on February 21, 2013, did defendants possess probable cause to arrest plaintiff.

11. At no time on February 21, 2013, did defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

12. Thereafter, plaintiff was transported to a nearby police precinct where he was subjected to an invasive strip search.

13. At no time did defendants possess the particularized suspicion necessary to justify an invasive strip search.

14. Plaintiff was charged with Criminal Sale of a Controlled Substance in the 3rd Degree, Criminal Possession of a Controlled Substance in the 3rd Degree, Criminal Sale of a Controlled Substance in the 5th Degree, Criminal Possession of a Controlled Substance in the 5th Degree, and Criminal Possession of a Controlled Substance in the 7th Degree.

15. At no time on February 21, 2013, did defendant possess any controlled substances or behave unlawfully in any way.

16. In connection with plaintiff's arrest, defendants filled out false and/or misleading police reports and forwarded them to prosecutors at the New York County District Attorney's Office. Specifically, defendants falsely stated that plaintiff had engaged in a, "drug-related conversation," with an undercover police officer and that plaintiff had engaged in a conversation relating to the sale of controlled substances with two other individuals.

17. Thereafter, defendants repeatedly gave false and misleading information regarding the facts and circumstances of plaintiff's arrest. Specifically, defendants falsely stated that plaintiff had engaged in a, "drug-related conversation," with an undercover police officer and that plaintiff had engaged in a conversation relating to the sale of controlled substances with two other individuals.

18. As a result of his unlawful arrest, plaintiff JEFFREY TREFFY spent approximately three (3) days in police custody and made multiple court appearances before all charges against him were dismissed in their entirety on April 25, 2013.

19. As a result of the foregoing, plaintiff JEFFREY TREFFY sustained, inter alia, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

The May 4, 2013 Incident

20. On or about May 4, 2013, in the County of Bronx, City, and State of New York, plaintiff JEFFREY TREFFY was in the vicinity of 1531 Westchester Ave. Bronx, NY.

21. At the aforesaid time and place, NYPD officers approached plaintiff, searched him, and immediately placed him under arrest with his arms tightly behind his back.

22. At no time on May 4, 2013, did defendants possess probable cause to arrest plaintiff.

23. At no time on May 4, 2013, did defendants possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

24. Thereafter, plaintiff was transported to a nearby police precinct where he was subjected to an invasive strip search in front of other detainees and corrections officers.

25. At no time did defendants possess the particularized suspicion necessary to justify an invasive strip search.

26. Plaintiff was charged with Obstructing Government Administration.

27. At no time on May 4, 2013, did defendant obstruct government administration or behave unlawfully in any way.

28. In connection with plaintiff's arrest, defendants filled out false and/or misleading police reports and forwarded them to prosecutors at the New York County District Attorney's Office. Specifically, defendants falsely stated that plaintiff followed an undercover police officer for several blocks yelling, "He's a cop. This guy's a cop."

29. Thereafter, defendants repeatedly gave false and misleading information regarding the facts and circumstances of plaintiff's arrest. Specifically, defendants falsely stated that plaintiff followed an undercover police officer for several blocks yelling, "He's a cop. This guy's a cop."

30. As a result of his unlawful arrest, plaintiff JEFFREY TREFFY spent approximately twelve (12) hours in police custody before the Bronx County District Attorney's Office declined to prosecute charges against him.

31. As a result of the foregoing, plaintiff JEFFREY TREFFY sustained, inter alia, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

FEDERAL CLAIMS ARISING UNDER THE FEBRUARY 21, 2013 INCIDENT

FIRST CLAIM FOR RELIEF ARISING UNDER THE FEBRUARY 21, 2013 INCIDENT DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

32. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

33. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

34. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth

Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

35. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

36. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

37. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**SECOND CLAIM FOR RELIEF ARISING UNDER THE FEBRUARY 21, 2013
INCIDENT
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

38. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

39. Defendants misrepresented and falsified evidence before the New York County District Attorney.

40. Defendants did not make a complete and full statement of facts to the District Attorney.

41. Defendants withheld exculpatory evidence from the District Attorney.

42. Defendants were directly and actively involved in the initiation of criminal proceedings against plaintiff.

43. Defendants lacked probable cause to initiate criminal proceedings against plaintiff.

44. Defendants acted with malice in initiating criminal proceedings against plaintiff.

45. Defendants were directly and actively involved in the continuation of criminal proceedings against plaintiff.

46. Defendants lacked probable cause to continue criminal proceedings against plaintiff.

47. Defendants acted with malice in continuing criminal proceedings against plaintiff.

48. Defendants misrepresented and falsified evidence throughout all phases of the criminal proceedings.

49. Notwithstanding the perjurious and fraudulent conduct of defendants, all charges against plaintiff were dismissed on or about April 25, 2013.

50. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

**THIRD CLAIM FOR RELIEF ARISING UNDER THE FEBRUARY 21, 2013 INCIDENT
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL
UNDER 42 U.S.C. § 1983**

51. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

52. Defendants created false evidence against plaintiff.

53. Defendants forwarded false evidence and false information to prosecutors in the New York County District Attorney's office.

54. Defendants misled the prosecutors by creating false evidence against plaintiff and thereafter providing false testimony throughout the criminal proceedings.

55. In creating false evidence against plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants violated plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

56. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

**FOURTH CLAIM FOR RELIEF ARISING UNDER THE FEBRUARY 21, 2013
INCIDENT
FALSE ARREST UNDER 42 U.S.C. § 1983**

57. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

58. As a result of the aforesaid conduct by defendants, plaintiff was subjected to illegal, improper and false arrest by the defendants, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

59. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he as put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

**FIFTH CLAIM FOR RELIEF ARISING UNDER THE FEBRUARY 21, 2013 INCIDENT
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983**

60. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

61. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

62. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and
- iii. fabricating evidence in connection with their prosecution in order to cover up police misconduct.

63. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiff.

64. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiff as alleged herein.

65. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiff as alleged herein.

66. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiff's constitutional rights.

67. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.

68. The acts complained of deprived the plaintiff of his right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon him; and
- D. To receive equal protection under the law.

FEDERAL CLAIMS ARISING UNDER THE MAY 4, 2013 INCIDENT

SIXTH CLAIM FOR RELIEF ARISING UNDER THE MAY 4, 2013 INCIDENT
DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

69. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

70. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

71. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

72. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

73. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and corrections officers, pursuant to the customs,

usages, practices, procedures, and the rules of the City of New York, the New York City Police Department and the New York City Department of Corrections, all under the supervision of ranking officers of said department.

74. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**SEVENTH CLAIM FOR RELIEF ARISING UNDER THE MAY 4, 2013 INCIDENT
FALSE ARREST UNDER 42 U.S.C. § 1983**

75. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

76. As a result of the aforesaid conduct by defendants, plaintiff was subjected to illegal, improper and false arrest by the defendants, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

77. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he as put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

**EIGHTH CLAIM FOR RELIEF ARISING UNDER THE MAY 4, 2013 INCIDENT
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983**

78. Plaintiff repeats, reiterates and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

79. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

80. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and

81. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiff.

82. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiff as alleged herein.

83. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiff as alleged herein.

84. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiff's constitutional rights.

85. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.

86. The acts complained of deprived the plaintiff of his right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon him; and

D. To receive equal protection under the law.

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
September 24, 2014

BY: _____/S_____
GERALD COHEN
JOSHUA FITCH
ILYSSA FUCHS
COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10273
(212) 374-9115

ATTORNEY'S VERIFICATION

JOSHUA FITCH, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

That he is a member of the law firm of COHEN & FITCH, LLP the attorneys for plaintiff JEFFREY TREFFY in the within entitled action

That your deponent has read the foregoing **COMPLAINT** and knows the contents thereof, and that the same is true to his own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, he believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not within the county wherein deponent maintains his office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
 September 24, 2014

_____/S
Joshua Fitch

Index No.
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

JEFFREY TREFFY,

,

Plaintiff,

-against-

THE CITY OF NEW YORK, DET. DENIA ROBERTS, Shield No. 006669, Individually and in his Official Capacity, DET. ODALIS PEREZ, Shield No. 007037, Individually and in his Official Capacity and POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Defendants

SUMMONS AND COMPLAINT

Attorneys for

COHEN & FITCH, LLP

Plaintiff

233 BROADWAY

SUITE 1800

NEW YORK, NEW YORK 10279

(212) 374-9115

To:

Signature (Rule 130-1.1a)

Attorneys(s) for

Service of a copy of the within

is hereby admitted

Dated:

.....

Attorneys(s) for

PLEASE TAKE NOTICE

☐ *that the within is a (certified) true copy of a*
NOTICE OF *entered in the office of the clerk of the within named Court on*
ENTRY

☐ *that an Order of which the within is a true copy will be presented for settlement to the Hon.*
NOTICE OF *one of the judges of the within name Court,*
SETTLEMENT at
on , at M.

Dated:

ATTORNEY FOR

COHEN & FITCH, LLP

Plaintiff

233 BROADWAY, SUITE 1800

NEW YORK, N.Y. 10279

(212) 374-9115